

SENATE No. 879

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to update Medicaid resource limits for seniors.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 879

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 879) of Jason M. Lewis for legislation to update Medicaid resource limits for seniors. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 769 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to update Medicaid resource limits for seniors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 25 of chapter 118E of the General Laws is hereby amended by
2 striking out subsection (1) in its entirety and replacing it with the following new subsection:-

3 (1) Monthly income in an amount not exceeding the level equivalent of 138% of the
4 federal poverty level, as updated annually;

5 SECTION 2. Section 25 of chapter 118E of the General Laws is hereby amended by
6 inserting after subsection (5) the following:

7 (6) the cash surrender value of any life insurance owned by the applicant or member or
8 his or her spouse without regard to the face value of the policy or policies;

9 (7) resources in the amount of \$10,000 per individual and \$20,000 per couple;

10 (8) these amounts shall be adjusted annually for inflation based on the US Department of
11 Labor's Consumer Price Index (CPI) for All Urban Consumers.

12 The division shall submit a state plan amendment to implement this section no later than
13 30 days after the effective date of this section and subsequently promulgate all regulations
14 necessary to implement said income and resource exemptions.